

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALFONSO ADJEI,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MAURIZIO MODICA** (*Shield No. 13442*), **POLICE
OFFICER VINCENT CIARDIELLO** (*Shield No. Presently
Unknown*) and **POLICE OFFICERS JOHN AND JANE
DOES** (*Police Officers whose names and shield numbers are
not yet known or identified*),

Defendants.
-----X

Index No.:

Date filed with Clerk of Court:

SUMMONS

Plaintiff designates **KINGS**
County as the place of trial.

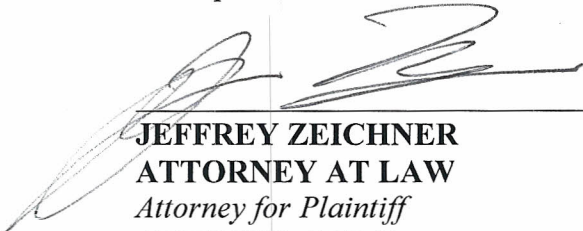
The basis of venue is:
Situs of the Accident

Plaintiff Reside:
5011 4th Avenue, Apt. No. 1L
Brooklyn, New York 11237

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days (20) after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 25, 2014



JEFFREY ZEICHNER
ATTORNEY AT LAW

Attorney for Plaintiff

ALFONSO ADJEI

Office, Post Office Address & Tel. No.
895 Sheridan Avenue
Bronx, New York 10451
Tel. (718) 538-6100

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NEW YORK 10007

THE NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NEW YORK 10007

POLICE OFFICER MAURIZIO MODICA
(Shield No. 13442)
ONE POLICE PLAZA
NEW YORK, NEW YORK 10007

POLICE OFFICER MAURIZIO MODICA
(Shield No. 13442)
72ND PRECINCT
830 4TH AVENUE
BROOKLYN, NEW YORK 11232

POLICE OFFICER VINCENT CIARDIELLO
(Shield No. Presently Unknown)
ONE POLICE PLAZA
NEW YORK, NEW YORK 10007

POLICE OFFICER VINCENT CIARDIELLO
(Shield No. Presently Unknown)
72ND PRECINCT
830 4TH AVENUE
BROOKLYN, NEW YORK 11232

POLICE OFFICERS JOHN AND JANE DOES
(Police Officers whose names and shield numbers are not yet known or identified),
ONE POLICE PLAZA
NEW YORK, NEW YORK 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALFONSO ADJEI

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MAURIZIO MODICA** (*Shield No. 13442*), **POLICE
OFFICER VINCENT CIARDIELLO** (*Shield No. Presently
Unknown*) and **POLICE OFFICERS JOHN AND JANE
DOES** (*Police Officers whose names and shield numbers are
not yet known or identified*),

Defendants.
-----X

Plaintiff, **ALFONSO ADJEI**, by his attorney, **JEFFREY ZEICHNER**, as and for a verified
complaint, upon information and belief and at all times hereinafter mentioned alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein alleged, the plaintiff **ALFONSO ADJEI** was a resident of the County of Kings, City and State of New York.
2. That at all the times herein alleged, upon information and belief, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. That at all times herein alleged, upon information and belief, the defendant **NEW YORK CITY POLICE DEPARTMENT** was and is an agent of the defendant **THE CITY OF NEW YORK**.
4. That at all times herein alleged, upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed various personnel, including the defendant, **THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER**

VINCENT CIARDIELLO (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), of the 72nd precinct as law enforcement agents, employees and personnel's herein mentioned.

5. That at all times herein alleged, upon information and belief, the defendant, **THE CITY OF NEW YORK**, trained said individuals to work as officers with defendant **THE NEW YORK CITY POLICE DEPARTMENT**.

6. That at all times herein alleged, upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed the various aforementioned personnel including law enforcement agents and officials, police officers, other personnel herein referred to.

7. That at all times herein alleged, upon information and belief, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, employed the various personnel including law enforcement agents and officials, police officers, other personnel herein referred to.

8. That at all times herein alleged, upon information and belief, the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), were police officers employed by the defendant, **THE CITY OF NEW YORK**.

9. That at all times herein alleged, upon information and belief, the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), were police officers employed by the defendants, **THE NEW YORK CITY POLICE DEPARTMENT**.

10. That upon information and belief, the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently*

Unknown) and **JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), were assigned to the 72nd Precinct of the **NEW YORK CITY POLICE DEPARTMENT**.

11. Plaintiff sue each and every defendant (except the City and Police Department) in both their individual and official capacity.

12. That at all times herein alleged, the defendant the defendants, **POLICE OFFICER MAURIZIO MODICA (SHIELD No. 13442), POLICE OFFICER VINCENT CIARDIELLO (SHIELD No. PRESENTLY UNKNOWN) and POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), acted within the scope of his duties as employee, agent, and official of the defendant, **CITY OF NEW YORK**, and the **NEW YORK CITY POLICE DEPARTMENT**.

13. That on or about May 14, 2013 at approximately 7:30 pm, the plaintiff was assaulted, arrested and battered and had excessive force used upon him at or about 60th Street and 4th Avenue, County of Kings, City and State of New York.

14. That on the aforesaid date, the plaintiff was maliciously, vindictively, and intentionally assaulted, used excessive force, arrested and battered by defendants **POLICE OFFICER MAURIZIO MODICA (Shield No. 13442), POLICE OFFICER VINCENT CIARDIELLO (Shield No. Presently Unknown) and POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), and other members of the Police Department of the defendants, **THE CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.

15. That the aforesaid arrest was committed without cause or provocation.

16. That at the time of the aforesaid arrest, the plaintiff did not commit any act to provoke said

arrest.

17. That the defendant, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by the defendants, **THE CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.

18. That on June 24, 2013, a Notice of Claim was served on the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, on behalf of plaintiff **ALFONSO ADJEL**.

19. That on June 24, 2013, the plaintiff herein duly presented in writing to the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

20. That more than 30 days have elapsed since the said Notice of Claim was served upon the defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** have failed and refused to make an adjustment of any claim herein set forth.

21. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York neglected to conduct a 50-h hearing and/or have stipulated that the plaintiff may commence his action prior to the holding of a hearing pursuant to Section 50-h of the General Municipal Law.

22. That all conditions precedent to the bringing of this action has been complied with.

23. That this action was commenced within one year and ninety (90) days after the accrual of the

cause of action herein.

24. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdiction of any court which would otherwise have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION

25. Plaintiff repeat and reallege each and every allegation contained in paragraphs 1 through 24, inclusive, as though more fully set forth at length herein.

26. That on or about May 14, 2013, the plaintiff **ALFONSO ADJEI**, was assaulted, arrested, had excessive force used upon him, and battered by the defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, by its agents, servants, and/or employees.

27. That on or about May 14, 2013 the plaintiff **ALFONSO ADJEI** was assaulted, had excessive force used upon him, arrested and battered by **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*).

28. That the aforesaid assault, battery, excessive force, was without probable cause or any justification and was further based upon the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), failure to properly investigate, filing of false and/or misleading statements, falsified reports, and documents.

29. There was no warrant for the arrest of the plaintiff on or about May 14, 2013.

30. The assault, battery, use of excessive force on the plaintiff by the defendants was without cause and reasonable grounds for said defendants to believe that the plaintiff, **ALFONSO ADJEI**, had posed a threat to the defendants; the defendant **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), further knew that they were without cause to assault, batter and use excessive force upon the plaintiff, **ALFONSO ADJEI**, and they performed various and sundry acts to affect said acts upon the plaintiff.

31. Neither at the time of the arrest nor at any other time was plaintiff, **ALFONSO ADJEI** informed of the grounds for said arrest.

32. As a result of their unlawful, malicious acts upon the plaintiff, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), acted with deliberate indifference and callous disregard of plaintiff's rights.

33. That as a result of the abovementioned acts by the defendants, the plaintiff suffered, plaintiff's health was impaired, plaintiff suffered great physical and mental distress and was injured.

34. That as a result of the foregoing the plaintiff, **ALFONSO ADJEI**, has been damaged in a sum which exceeds the jurisdiction of any court which would otherwise have jurisdiction over this matter.

AS AND FOR A THIRD CAUSE OF ACTION

35. Plaintiff repeat and reallege each and every allegation contained in paragraphs 1 through 34,

inclusive, with the same force and effect as though set forth at length herein.

36. That subsequent to the aforesaid acts by the defendants, the plaintiff, **ALFONSO ADJEI**, was required to be hospitalized for an extended period.

37. That the aforesaid hospitalization and subsequent medical treatment was the result of tortuous conduct by the defendants.

38. That at all times herein mentioned, the plaintiff was aware of his conscious pain and suffering

39. That as a result of the foregoing, the plaintiff, **ALFONSO ADJEI**, sustained damages in a sum which exceeds the jurisdictional limits of all courts which would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION

40. Plaintiff repeat and reallege each and every allegation contained in paragraphs 1 through 39, inclusive, with the same force and effect as though set forth at length herein.

41. That at the time of the aforesaid tortuous conduct by the defendants **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

42. That the defendant, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, at the time of the above-stated incident knew, should have known and had reason or opportunity to know, that the agents, servants and/or employees described in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law

enforcement responsibilities to which they were assigned.

43. That by hiring, training, retaining, employing, failing to supervise and failing to investigate the aforesaid agents, servants and/or employees, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, and inadequate supervision, threaten, assault, batter, use excessive force, and unlawfully deprive innocent persons of their health, without sufficient reason or probable cause appearing therefore

44. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, knew, had reason or opportunity to know, in the exercise of due and reasonable care, that the aforesaid agents, servants, and/or employees were vicious, potentially dangerous, negligent and performing violent acts during the course of their employment duties.

45. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, were negligent in the hiring, employment, training, retention and supervision of the aforesaid agents, servants and/or employees.

46. That by reason of and in consequence of said negligence and lack of reasonable care on the part of the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, and its agents, servants and/or employees, the plaintiff herein sustained damages in a sum which exceeds the jurisdictional limits of all courts which would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION

47. Plaintiff repeat and reallege each and every allegation contained in paragraphs 1 through 46, inclusive, with the same force and effect as though set forth at length herein.

48. As a result of the foregoing unlawful acts by the defendants, the plaintiff was deprived of his rights without due process of law in violation of his rights under the Eighth, Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. 1983.

49. That the unlawful acts were perpetrated pursuant to and under color of law, and pursuant to official policy, procedure, regulation and custom of defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, violated the plaintiff due process of law and his rights under the Eighth, Fifth and Fourteenth Amendments to the constitution of the United States and in violation of their statutory rights under 42 U.S.C. 1983.

50. That the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*), unlawful, assault, battery and use of excessive force upon the plaintiff, **ALFONSO ADJEI**, was perpetrated pursuant to and under color of law, and pursuant to official policy, procedure, regulation and custom of **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

51. Acting under color of law and pursuant to official policy, procedure, regulation and custom, defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** knowingly, intentionally, recklessly or, with deliberate indifference and callous disregard of plaintiff **ALFONSO ADJEI** constitutional and statutory rights, failed to instruct, train, supervise, control, discipline and investigate the defendant police officers on a continuing basis to prevent said defendant police officers, in the conduct of their official duties from:

- (1) acting in concert to commit and cause an unlawful, warrantless, malicious and

secured immunities;

- (2) acting in concert to commit and cause an unlawful, assault, battery, use of excessive force on the plaintiff for an extended period of time despite the fact that the plaintiff was acting in accordance within his constitutional and statutory rights, privileges and immunities;
- (3) conspiring to deprive plaintiff of their liberty in violation of the Fifth and Fourteenth Amendments, rights to due process of law under the United States Constitution and other rights, privileges and immunities guaranteed to the plaintiff by the United States Constitution, the laws of the United States and the laws of the State of New York;
- (4) conspiring along with other police department personnel assigned to the 72nd pct. of **THE NEW YORK CITY POLICE DEPARTMENT** to commit a course of offenses, practices and official misconduct including depriving plaintiff of their rights, privileges and immunities secured to them by the United States Constitution and the laws of the United States.

52. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, under color of law or pursuant to official policy, procedure and custom, knowingly, intentionally, recklessly, or with deliberate indifference and callous disregard of plaintiff's constitutional and statutory rights, did refuse, neglect or fail to supervise and investigate the activities of the defendants police officers and other police department personnel assigned to the 72nd Precinct of **THE NEW YORK CITY POLICE DEPARTMENT**.

53. That the refusal, neglect or failure by the defendants, **THE CITY OF NEW YORK** and **THE**

NEW YORK CITY POLICE DEPARTMENT to supervise and investigate the activities of the defendants, the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*) and others, 72nd Precinct police personnel permitted said defendant, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*) to engage in a course of offenses, including assaults and other official misconducts.

54. That the defendant **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**'s refusal, neglect or failure to supervise and investigate the activities of the defendants, the defendants **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*) and other 72nd Precinct police personnel directly led to the deprivation of liberty without due process of law suffered by plaintiff and violations of the plaintiff's rights under the United States Constitution, 42 U.S.C. 1983 and other laws of the United States and the State of New York.

55. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** knew, should have known and in the exercise of reasonable care had the opportunity to know that the defendants, **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*) and other personnel at 72nd Precinct engaged in a course of offense, corrupt practices and official misconduct

including the deprivation of liberty without due process of law, suffered by plaintiff and violations of the plaintiff's rights under the United States Constitution, 42 U.S.C. 1983 and the laws of the United States.

56. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, directly or indirectly, under color of law or pursuant to official policy, procedure or custom, approved or ratified the aforementioned unlawful, deliberate, assault, battery, false arrest and imprisonment and wanton conduct of the defendants police officers.

57. That the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** are responsible and vicariously liable for the aforementioned acts, omissions and conduct of the defendant police officers as set forth above.

58. That the aforementioned acts, omissions and conduct of the defendants, as set forth above, resulted in the plaintiff suffering severe mental distress, severe physical injury.

59. As a result of the foregoing, the plaintiff, **ALFONSO ADJEI**, sustained damages in excess of the jurisdiction of all other courts which would otherwise have jurisdiction over this matter.

AS AND FOR A SIXTH CAUSE OF ACTION

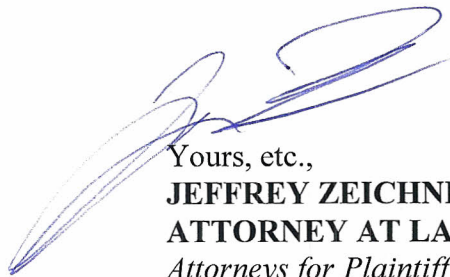
60. Plaintiff repeat and reallege each and every allegation contained in paragraphs 1 through 67 inclusive, with the same force and effect as though more fully set forth at length herein.

61. Pursuant to 42 U.S.C. 1983, the undersigned counsel for plaintiff request and demand attorneys' fees be awarded as fair and reasonable compensation for services rendered in connection with this action.

62. As a result of the foregoing, attorneys' fees in a sum exceeding the jurisdiction of all lower courts which would otherwise have jurisdiction over this matter are demanded.

WHEREFORE, plaintiff, **ALFONSO ADJEI**, demand judgment against the defendants, **THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT** and **POLICE OFFICER MAURIZIO MODICA** (*Shield No. 13442*), **POLICE OFFICER VINCENT CIARDIELLO** (*Shield No. Presently Unknown*) and **POLICE OFFICERS JOHN AND JANE DOES** (*Police Officers whose names and shield numbers are not yet known or identified*) on each cause of action numbered first through seventh, inclusive, in an amount which would exceed the jurisdiction of all lower courts which would otherwise have jurisdiction over this matter, all together with the costs and disbursements of this action.

Dated: Bronx, New York
July 25, 2014

A handwritten signature in blue ink, appearing to read 'Jeffrey Zeichner', is written over the typed name and title.

Yours, etc.,

JEFFREY ZEICHNER
ATTORNEY AT LAW

Attorneys for Plaintiff

ALFONSO ADJEI

Office, Post Office Address & Tel. No.
895 Sheridan Avenue
Bronx, New York 10451
Tel. (718) 538-6100

VERIFICATION

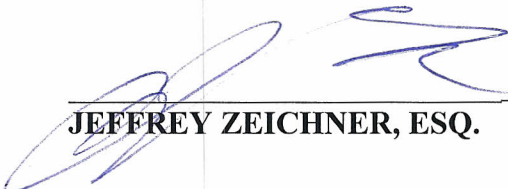
BY
ATTORNEY'S
AFFIRMATION

STATE OF NEW YORK)
 :
COUNTY OF BRONX) S.:

JEFFREY ZEICHNER, affirms, per CPLR, under the penalties of perjury, that the attorney of record for the plaintiff and that he has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters he believes it to be true.

Affiant states that the reason he makes this affirmation is that the plaintiff resides in a county other than the one in which affiant and plaintiffs' attorneys maintain their offices; and affiant further states that the sources of his information and belief are from conversations had with the plaintiff and/or from the memoranda, documents, reports and other related records in the file of this action, which file is in your affiant's possession.

Dated: Bronx, New York
July 25, 2014



JEFFREY ZEICHNER, ESQ.

Index No.:

Year 2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALFONSO ADJEI

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MAURIZIO MODICA (Shield No. 13442), POLICE OFFICER VINCENT CIARDIELLO (Shield No. Presently Unknown) and POLICE OFFICERS JOHN AND JANE DOES (Police Officers whose names and shield numbers are not yet known or identified),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JEFFREY ZEICHNER ATTORNEY AT LAW
Attorney for PLAINTIFF
895 Sheridan Avenue
Bronx, New York 10451
(718) 538-6100

Pursuant to 22NYCRR 130-1.1-a, the undersigned attorney admitted to practice in the court of New York state, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that it if was, the attorney or other persons responsible of the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 120.41-a.

Dated: Signature

Print Signature.....

Service of a copy of the within is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

that the within is a (certified) true copy of a
NOTICE OF ENTRY entered in the office of the clerk of the within-named Court on 20

that an Order of which the within is a true copy will be presented for settlement to the
NOTICE OF SETTLEMENT Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

JEFFREY ZEICHNER ATTORNEY AT LAW
Attorney for PLAINTIFF
895 Sheridan Avenue
Bronx, New York 10451
Tel. (718) 538-6100

To:
Attorney(s) for